

CASE No. 2026CA391

In The
Colorado Court of Appeals

EMILY MASSON
Plaintiff-Appellant

v.

THE SAN MIGUEL AUTHORITY FOR REGIONAL TRANSPORTATION, THE
TOWN OF MOUNTAIN VILLAGE AND THE TOWN OF TELLURIDE

Defendants-Appellees

Appeal from the DISTRICT COURT, SAN MIGUEL COUNTY, COLORADO

Case No. 2024CV008

REPLY BRIEF OF APPELLANT MASSON TO ANSWER BRIEF OF SMART

Morgan C. Smith # 61808
MORGAN C. SMITH LAW FIRM
3130 Last Dollar Rd.
PO Box 3460
Telluride, CO 81435
Telephone: 970.239.1470
Email: Morgan@morgancsmithlaw.com

TABLE OF CONTENTS

I.	SUMMARY OF ARGUMENT.....	1
II.	MASSON’S THEORY OF CONSTITUTIONALLY NECESSARY DUE PROCESS NOTICE WAS RATIONAL AND REASONABLE	2
III.	SMART MISCHARACTERIZED MASSON’S THEORY THROUGHOUT THE LITIGATION	5
1.	Masson’s briefing supports her claim of due process requiring reasonable notice	5
2.	SMART improperly reframed Masson’s claim as a straw man duty to “solicit”	6
3.	The order denying Masson’s claims improperly adopts SMART’s straw man theory	6
4.	SMART’s motion for attorney fees again improperly advances the straw man theory	7
5.	The Court’s curative order did not address Masson’s reasonable notice theory, nor review the mandated factors of COLO. REV. STAT. §13-17-103(1).....	8
6.	SMART’s Answer brief to this court, again, improperly advances the straw man theory	10
IV.	SMART’S PRESERVATION AND WAIVER ARGUMENTS FAIL	10
V.	REQUEST FOR ATTORNEY FEES	12
VI.	CONCLUSION	13
VII.	CERTIFICATE OF COMPLIANCE	15

TABLE OF AUTHORITIES

Constitutional Provisions

COLO. CONST. ART. X, § 20(3)(b)(v).....	1, 3, 7
---	---------

State Cases

<i>Bickel v. City of Boulder</i> , 885 P.2d 215 (Colo. 1994)	2, 3, 4, 8
<i>Board of County Comm'rs v. Auslaender</i> , 745 P.2d 999 (Colo. 1987)	8
<i>Cacioppo v. Eagle County Sch. Dist. Re-50J</i> , 92 P.3d 470 (Colo. 2004).....	11
<i>Cendant Corp. & Subsidiaries v. Dep't of Revenue</i> , 226 P.3d 1102 (Colo. App. 2009)	12
<i>Colo. Ethics Watch v. Senate Majority Fund, LLC</i> , 2012 CO 12, ¶ 20.....	3
<i>Western United Realty, Inc. v. Isaacs</i> , 679 P.2d 1063 (Colo. 1984).....	4

State Statutes

COLO. REV. STAT. § 1-11-217	8
COLO. REV. STAT. § 13-17-102(7)	1, 3, 4, 9
COLO. REV. STAT. § 13-17-103	2, 9, 10, 11, 13

I. SUMMARY OF ARGUMENT

SMART's answer brief creates and then attacks a straw man. Masson never claimed SMART should have a duty to *solicit* pro and con comments for a TABOR notice. Her claim is narrower and more basic: once SMART chose to bring a TABOR ballot measure, it had an implied constitutional due process duty to give voters a fair and meaningful notice of the opportunity to participate by telling them when, where, and how to submit comments for the TABOR notice. That is Masson's claim.

That is a colorable first-impression construction of COLO. CONST. ART. X, § 20(3)(b)(v) that gives effect to TABOR's text, purpose, and voter-protection mandate. It is not frivolous, irrational, or sanctionable. Indeed, COLO. REV. STAT. § 13-17-102(7) expressly protects claims advanced "in a good faith attempt to establish a new theory of law in Colorado." Masson's theory falls squarely within that safe harbor.

TABOR presupposes a functioning comment process, not a hidden one. The contrary theory—allowing a public entity to conceal the practical mechanics of participation, then relying on the resulting silence to publish only a one-sided summary and claim compliance—raises serious issues. Such an interpretation invites manipulation, undermines informed voter participation, and contradicts TABOR's declared purpose of restraining government and protecting taxpayers. ART. X, § 20(1).

The trial court's fee award should be overturned for the following reasons.

First, Masson presented a reasonable and rational theory grounded in the basic tenets of due process, namely that without notice from the ballot proponents, voters are unable to provide comments as directed by TABOR.

Second, neither the trial court nor SMART ever addressed Masson's actual due process claim but rather created a straw man argument she never made.

Third, the requirement for the court to address all relevant factors within COLO. REV. STAT. § 13-17-103(1) was properly briefed and before the court. However, the court failed to do as required by law.

For these reasons, Masson requests that this court overturn the award of fees in favor of SMART.

II. Masson's theory of constitutionally necessary due process notice was rational and reasonable

TABOR states the election notice "shall include only"¹ "[t]wo summaries, up to 500 words each, one for and one against the proposal, of written comments filed with the election officer by 45 days before the election." ART X, 20(3)(b)(v). The clear purpose is to increase voters' knowledge by including comments from proponents who place the measure, as well as from those who oppose it. Masson readily admits there is no *explicit*

¹ The language of "shall include only" is admittedly unusual. One interpretation could be that only these five listed items *may* be listed on the notice, but none are required. However, this interpretation conflicts with the holding of *Bickel v. City of Boulder*, 885 P.2d 215 (Colo. 1994) requiring actual compliance with including any items for which there is a direct reference in this section. Under *Bickel*, the better interpretation is that it "shall include only", and *must include*, each of the following but nothing else.

requirement in the language of TABOR regarding what notice, if any, should be provided by the proponents on how to timely file comments.

That is a real textual gap, not a frivolous invention. But TABOR cannot sensibly be read in isolation from the constitutional purpose it serves: if the public entity is going to rely on a public comment process to generate the “for” and “against” summaries that appear in the TABOR notice, it must at least give the voters reasonable notice of how, when, and where to submit those opposition comments. That is a colorable construction of the basic due process, not a frivolous one, that advances the purpose of TABOR.

In *Bickel v. City of Boulder*, 885 P.2d 215, 236 (Colo. 1994), the Supreme Court held that “the primary purpose of [TABOR’S] disclosure provisions [] is, to provide the electorate with the information necessary to make an intelligent decision on ballot issues involving debt and/or tax increases.” See also *Colo. Ethics Watch v. Senate Majority Fund, LLC*, 2012 CO 12, ¶ 20 – If “the language of an amendment is susceptible to multiple interpretations, then we ‘construe the amendment in light of the objective sought to be achieved and the mischief to be avoided by the amendment.’”

No Colorado appellate decision has addressed the specific language of ART. X, 20(3)(b)(v). Nor has any Colorado case addressed the relationship of ART. X, § 20(3)(b)(v) and COLO. REV. STAT. § 1-7-901. That is exactly the kind of claim COLO. REV. STAT. § 13-17-102(7) protects as a good-faith desire to have a clear resolution of

the issue. A party does not lose that protection merely because the argument is novel, contested, or ultimately rejected.²

Masson's opening brief showed why the argument was made in good faith. She anchored the claim in TABOR's text, its voter-protection and knowledge purposes, and Colorado precedent requiring substantial compliance with TABOR's notice provisions. See *Bickel v. City of Boulder*, 885 P.2d 215 (Colo. 1994). She also rejected any claim that SMART had to "solicit" opposition comments. That is a legally coherent distinction.

SMART's contrary argument to the court is that, in the *absence* of a clear written duty under COLO. REV. STAT. § 1-7-901 to provide notice of the timing or procedure for comments, no duty should be imposed. While SMART's argument is reasonable, it does not render Masson's competing interpretation irrational. At most, it shows the issue was debatable, and a debatable first-impression constitutional claim is not frivolous. On this record, Masson's TABOR theory comfortably falls within the safe harbor of COLO. REV. STAT. § 13-17-102(7), and the fee award cannot stand on the theory that she lacked substantial justification simply because the district court disagreed with her interpretation of the necessary due process for notice.

² Contrary to SMART's objection, the determination of good faith is an *objective* determination of whether there is a "rational" argument to support the claim, or for a good faith extension of existing law. *Western United Realty, Inc. v. Isaacs*, 679 P.2d 1063 (Colo. 1984). Here the court understood Masson was making a request for extension of TABOR based on its policy and language. The court stated at trial "Okay. Talking about the. . . second piece of that... the comment period, you are asking me to make new law essentially on that. . ." CF, 1092.

III. SMART mischaracterized Masson’s theory throughout the litigation

1. Masson’s briefing supports her claim of due process requiring reasonable notice

Masson first raised this reasonable notice claim in her *pro se* written complaint, stating that “[t]he ballot language only included a position statement in favor of 3A passage” and that, due to the very short time between public announcements that the ballot measure was on the ballot and the deadline for comments, “no one was aware of the measure in time to provide an opposition statement. . .” CF, p. 8.

Masson continued with her due process argument within her trial brief, stating that:

“Some reasonable period must be given to allow those persons who might oppose a referred ballot measure to submit an opposing statement. The concept of due process (notice and opportunity to be heard) is, or should be, a fundamental precept of the constitutional democracy as it should exist in the United States.”

CF, pp. 462-463, see also pp. 453, 463, 469.

Masson’s due process claim continued in her written closing statement, stating that “basic concepts of due process dictate that some reasonable notice of the opportunity to submit them is warranted under TABOR.” CF, pp. 498-500. “There is no reasonable notice or opportunity to respond without the information of where, when, and to whom opposition must be provided.” CF, p. 499.

Masson continued to assert this claim, grounded in due process principles, in opposition to the motions for fees. See 555-556, 723-724. That is the core of Masson’s theory, yet not the one addressed by SMART.

2. SMART improperly reframed Masson’s claim as a straw man duty to “solicit”

Regardless of the consistent description of Masson’s theory above, SMART repeatedly recast Masson’s claim as if she were asking the court to impose a duty to solicit comments. This was never Masson’s claim, as SMART is aware.³ Yet, SMART repeatedly mischaracterized Masson's argument.

At trial, SMART asserted that Masson advocated a requirement that SMART had a duty to *solicit* comments in support of and in opposition to a ballot measure. CF, pp. 339, 660, 668-669, 673, 675, 866-67, 871, 873.

During trial, the court asked counsel for Masson if there was a duty to “solicit” comments, and he stated correctly that “the entity does not have to solicit. That's correct.” CF, p. 1095. Counsel also agreed there is “no mandate that they [public entities] have to go search up opposing comments if they don't get any” CF, pp. 1092-1093.

3. The order denying Masson’s claims improperly adopts SMART’s straw man theory

The trial court’s order denying the election claim as to SMART continues to express the same misunderstanding as noted above and the same straw man theory advanced by SMART:

³ “Contestee SMART asserts in its Answer the correct, but irrelevant, claim “there is no legal requirement for public entities to solicit pro and con statements for the TABOR notice.” (See SMART Answer ¶ 27.) The issue in this case is not a claim that any Contestee should have solicited an opposing view, but that the Contestees, and each of them, failed to provide any reasonable opportunity for opponents to submit an opposing view.” CF, p. 461 fn. 5.

“C.R.S. 1-7-901 describes the process for political subdivisions to accept written comments concerning ballot issues. There are no requirements for political subdivisions to provide any specific notice to the public, to *solicit comments*, or any deadlines for providing notice to the public of placing a measure on a ballot.”

CF, p. 660, emphasis added.

The court’s order addresses a different question from the one Masson actually presented and inappropriately focuses on the non-existent straw man argument of solicitation. Additionally, the trial court’s statement that no “specific notice to the public... of placing a measure on a ballot” is required under the law is incorrect under the plain language of TABOR, which has extensive notice requirements to let people know a ballot measure has been set and to provide information for an informed voter group.⁴

4. SMART’s motion for attorney fees again improperly advances the straw man theory

In its motion for fees, SMART again ignored the reason for notice based on due process concerns and argued that “[n]either TABOR nor any other law requires a public entity to provide notice to its electors that a ballot title has been set or to *solicit* comments for the TABOR Notice.” CF pp. 668, 669, 673, 675.

This was never Masson’s theory and appears at odds with the exact requirement of ART. X, § 20(3)(b), where such notice of ballot setting and title are required by law to be sent to voters before the election.

⁴ COLO. CONST. ART X, § 20(3)(b) requires an extremely detailed mailing to all registered voters “at least 30 days before a ballot issue election”, that includes detailed requirements for titling, the “election date, hours, ballot title, text. . .”, “estimated or actual total of district fiscal year spending for the current year and each of the past four years” that also includes “Two summaries, up to 500 words each, one for and one against the proposal.”

Masson *again* pointed out the omission in her response to the fee motion. She explained that the trial court had “left unaddressed [] what duty, if any, exists under ART. X, § 20(3)(b)(v) over and above the state statute,” in the court’s order denying Masson’s election claim. CF p. 723. Masson again raised the policy and holding of *Bickel v. City of Boulder*, 885 P.2d 215 (Colo. 1994), none of which SMART or the court discussed at any time. CF p. 723, 866-67, 871, 873.

Those omissions are fatal to SMART’s fee theory because a party cannot be sanctioned for advancing a theory the party never asserted, nor was specifically found sanctionable by the court.

5. The Court’s curt fee order did not address Masson’s reasonable notice theory, nor review the mandated factors of COLO. REV. STAT. §13-17-103(1)

Colorado law requires more than a conclusory label before a court may award attorney fees. COLO. REV. STAT. §13-17-103(1). In *Munoz v. Measner*, 247 P.3d 1031, 1032 (Colo. 2011), the Court held that specific, factor-by-factor findings are required when a request for fees is granted; they are not required when a request is denied. Likewise, *Board of County Comm’rs v. Auslaender*, 745 P.2d 999, 1000 (Colo. 1987), explains that the court must create an adequately developed record and findings on the fee issue. Following the briefing on SMART’s motion for fees, the court entered this order, which does not comply with or address the legally mandated factors for consideration:

The Court has reviewed the Motion, Response, and Reply as well as the record in this matter. For the reasons stated in the Motion and the Reply, and after review of the provisions of CRS § 1-11-217(2) and CRS 13-17-102, the Court finds the suit as filed was frivolous and lacked substantial justification. While Plaintiff

vigorously pursued her claims, such pursuit ignored well-established law that was contrary to her position.

The problem is not merely that the order is terse; it is that the order never shows the court understood the reasonable notice claim Masson brought. The fee order speaks only in the language of SMART's reframing as pure statutory construction and a straw man argument that Masson sought to impose a duty to solicit opposition comments. The order contains nothing indicating that the court grappled with Masson's *implied* due process notice theory. The court appears to have taken the silence in COLO. REV. STAT. § 1-7-901 regarding notice as proof that no notice is required under any legal theory, implied or otherwise.

The order never identifies the specific claim against SMART that the court deemed frivolous, never identifies the controlling law supposedly ignored, and never explains how the statutory factors supported a fee award.

That omission is especially problematic here because Masson's claim was a good-faith, first-impression TABOR notice theory—precisely the kind of novel legal argument COLO. REV. STAT. § 13-17-102(7) protects from fee shifting if asserted in good faith. The court's order does not address that safe harbor at all. Pointedly, the court never found that Masson acted in “bad faith,” which should support a denial of the fee claim. Yet the court never addresses how Masson's claim was “frivolous” if she presented it in good faith. That contradiction in the order and the applicable law needs explanation.

Because the order does not identify which “well-established law” was allegedly ignored, does not identify which of Masson's claims was sanctioned as frivolous, and fails

to satisfy the court's duty to address all relevant factors under COLO. REV. STAT. § 13-17-103(1), the proper remedy is reversal of the fee award.

6. SMART'S Answer brief to this court, again, improperly advances the straw man theory

SMART compounds this identical, apparently intentional, confusion in its Answer before this court by claiming that "Masson conceded in her pre-trial brief and her attorney conceded at trial that there is no affirmative legal duty for SMART to solicit TABOR comments." SMART Answer p. 18. That would be an extremely damning and persuasive concession, were it not for the fact that Masson never asserted that claim and repeatedly disavowed it in this case.

When a party repeats a theory that is disavowed by its opponent without confronting the argument actually made, it is powerful evidence that the party has no answer to the claim.

IV. SMART's preservation and waiver arguments fail

SMART's preservation and waiver arguments fail because they misstate what Masson had to preserve and rely on a hearing theory unsupported by the record.

First, SMART's C.A.R. 28(a)(7)(A) argument fails. Masson is not asking this Court to reconstruct an undeveloped theory; she challenges the legal sufficiency of the court's extremely brief fee award order, which failed to meet the requirements of COLO. REV. STAT. § 13-17-103(1). She also points out the trial court's failure to address her due process claim throughout the litigation. SMART may dispute the merits, but it cannot plausibly say,

as discussed above, that the due process notice issue was never raised or that an “objection” to an appealable order is even possible or necessary.

Second, SMART’s objection to Masson’s incorporation by reference regarding the discussion of the COLO. REV. STAT. § 13-17-103 factors included in the opposition to the companion Towns of Telluride and Mountain Village motion for fees is artificial. As the two Towns were dismissed before trial, Masson filed her opposition to their request for fees on May 27, 2025. CF, p. 553. In such opposition, Masson extensively addressed each relevant factor of COLO. REV. STAT. § 13-17-103. CF, pp. 553-563. The Towns’ motions were fully briefed but not ruled upon when SMART filed its motion for fees on August 25, 2025, and were cited by incorporation in Masson’s opposition on September 8, 2025. CF, pp. 665, 720.

Masson expressly directed the trial court to her fee brief analysis of COLO. REV. STAT. § 13-17-103, and SMART itself relied on the same statute in its fee brief, thereby placing the issues squarely before the court. CF, p. 720. If SMART had any objection to the incorporation by reference, the time to make such an objection was before the trial court ruled, when Masson could easily have remedied the issue.

Third, SMART’s waiver argument based on Masson’s stipulation to the reasonableness of the award in order to appeal the matter immediately also fails. Masson waived a hearing on the amount of fees but expressly reserved her right “to challenge the entitlement to attorney fees by SMART and the TOMV upon appeal.” CF, p. 804. That is precisely what Masson is now doing.

SMART's analogy to the ballot-title challenge deadline in *Cacioppo v. Eagle County Sch. Dist. Re-50J*, 92 P.3d 470 (Colo. 2004) misses the point. *Cacioppo* addressed a statute-of-limitations bar on untimely challenges to ballot title form and content; it did not decide whether a government entity inviting public comments on a ballot issue must give reasonable notice of the comment procedure itself.

SMART's reliance on *Cendant Corp. & Subsidiaries v. Dep't of Revenue*, 226 P.3d 1102, 1108 (Colo. App. 2009) is likewise misplaced. The maxim that ignorance of the law is no excuse does not relieve the government of its *separate* obligation to provide meaningful notice of a pending action and the procedure for objecting. Masson's argument was not that citizens may ignore a known legal duty. It was that SMART never told the public that comments were being accepted, when they were due, where they should be sent, or how they could be submitted for inclusion in the TABOR notice. Constructive knowledge of a statute does not supply those facts.

At a minimum, the distinction between ignorance of substantive law and lack of notice of a deadline-driven governmental procedure gave Masson a rational, nonfrivolous basis for the claim. SMART's contrary arguments may go to the merits, but they do not show that they are frivolous.

V. Request for Attorney Fees

SMART's fee request should be denied because Masson's appeal is not frivolous and SMART identifies no sanctionable misconduct within her opening brief. SMART simply reiterates its mostly technical objections, to which Masson has responded above. SMART

fails to identify anything sanctionable regarding Masson's appellate brief, other than that it disagrees with Masson's positions.

Further, if any fees are awarded on appeal under C.A.R. 39.1, they should be awarded to Masson because SMART has continued to mischaracterize Masson's claim as a duty to "solicit" comments. Masson's theory has always been that TABOR and due process required meaningful notice of when, where, and how voters could submit comments regarding the ballot notice. SMART's repeated straw man framing likely misled the trial court and is the reason this fee appeal exists at all. Under these circumstances, Masson respectfully requests an award of her reasonable appellate fees and costs against SMART under C.A.R. 38.

VI. Conclusion

SMART's fee argument is disingenuous because it rests on a mischaracterization of Masson's claim as requiring solicitation of comments. Rather, Masson argued that once SMART brought a measure under TABOR, it had to provide meaningful notice of when, where, and how voters could participate. SMART's repeated insistence on reframing that theory is not a mere semantic dispute. It is the central distortion underlying its fee request and explains why the fee ruling cannot stand and likely why the trial court improperly awarded fees in this case to begin with.

The district court's order is equally unsustainable because it lacks the detail this Court needs for meaningful review. COLO. REV. STAT. § 13-17-103(1). The order states only that Masson "ignored well-established law," but it identifies no controlling authority,

no statutory text, and no specific analysis showing that Masson's actual TABOR-based reasonable notice theory was frivolous or lacked substantial justification. A bare conclusion is not enough. Without findings tied to the real claim litigated, this Court cannot determine what legal ground, if any, was the basis of this award. Nor can this Court determine whether SMART's improper straw-man version of the case carried the day, although that seems most likely.

Masson respectfully requests that this Court reverse the fee award to SMART in its entirety, vacate the district court's order, and remand with instructions to enter judgment denying all fee requests against Masson.

Additionally, because SMART has continued to mischaracterize Masson's theories on appeal, Masson respectfully requests an award of her reasonable appellate attorney fees and double costs under C.A.R. 39.1.

DATED: July 15, 2026

MORGAN C. SMITH LAW FIRM

/s/ Morgan C. Smith

Counsel for Appellant Emily Masson

VII. Certificate of Compliance

I hereby certify that this brief complies with the applicable word limits set forth in C.A.R. 28 and C.A.R. 32. This brief contains 3,678 words, as determined by the word-processing system used to prepare it. The word count includes all text except those portions excluded by C.A.R. 28(g). This brief also complies with the formatting requirements of C.A.R. 32.

DATED: July 15, 2026

MORGAN C. SMITH LAW FIRM

/s/ Morgan C. Smith

Counsel for Appellant Emily Masson